MOHAMMED REZWAN KHAN

Versus

THE PROVINCIAL MINING DIRECTOR MASHONALAND CENTRAL

And

THE MINISTER OF MINES AND MINING DEVELOPMENT

And

MELODY CHINOURIRI

And

CHINOURIRI LORRAINE DZIDZAI

And

GOLDEN GIRLS MINING SYNDICATE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 12 September 2025 & 2 April 2026

Application for condonation and extension of time to file an application for review

Ms G. Chitsaka for the Applicant
A. Chimhofu for the 3rd, 4th and 5th respondents
C. Suka for the 2nd respondent

DUBE-BANDA J:

[1] This is a court application for condonation for the late filing of an application for review and extension of time within which to file the application. The application is opposed by the third, fourth, and fifth respondents. The first and second respondents ("Ministry") neither filed opposing papers nor sought to participate in the hearing of this application. However, Mr *Suka* counsel for the second respondent, attended the hearing but took no part in the proceedings. In such circumstances, it is assumed that these respondents have taken a position to abide by the decision of the court. For convenience, and where the context

permits, the third, fourth and fifth respondents shall collectively be referred to as "the respondents."

[2] In the opposing affidavit, the respondents took a preliminary objection, arguing that the citation of the Minister was improper in that there was no compliance with the provisions of the State Liabilities Act [*Chapter 8:14*] requiring a sixty-day notice of the impending suit. At the commencement of the hearing, this objection was abandoned. No further reference shall be made to it in this judgement.

[3] These background facts provide the context. On 21 December 2024, the Ministry of Mines and Mining Development issued Special Grant No. 9858 to the fifth respondent. The third and fourth respondents are syndicate members of the fifth respondent. The Special Grant covers an area of approximately 8 hectares situated within RA 1566 in the Mining District of Mashonaland Central. The applicant contends that he has a right in respect of the mining area covered by the Special Grant. In addition, the applicant contends that on 3 March 2010, he obtained a Certificate of Registration over a block consisting of one gold reef named Smithfield Farm. He avers that sometime in 2012, he became interested in carrying out mining activities over an area that is ten hectares in extent, which is adjacent to his claim. He contends that in 2013, he spoke to one Chiota, the then Mining Commissioner, about extending his claim. He alleges that Chiota visited the site, approved the extension, and requested that he fence the area and pay for it. He says the extension was done in terms of s 54 of the Mines and Mineral Act [*Chapter 21:05*]. The applicant contends that he pegged the extension and fenced it, cleared the area in preparation of open-cast mining, has been paying annual inspection fees for the extension, and since 2013, he has been carrying out mining operations on the extension with the knowledge of the Ministry. In addition, the applicant avers that on 2 December 2020, in case number HC5932/20, wherein Melody Chinouriri, the fourth respondent herein, was the first respondent, he obtained an order whose effect was to interdict her (Melody Chinouriri) from carrying out activities at mining claim Xmas 159 together with the extension measuring ten hectares of land fenced at Smithfield Farm. In addition, the order directed that (Melody Chinouriri) vacate and restore the disputed area to the applicant. The Special Grant sought to be impeached, and the anticipated application for review covers this disputed area.

[4] The primary principles governing consideration of a condonation application where a party is barred from proceeding because they have failed to comply with the timeline for filing some form of legal process were confirmed in a plethora of cases in this jurisdiction. See *Kombayi* v *Berkout* 1988 (1) ZLR 53 (S); *Mzite* v *Damafalls Investment (Pvt) Ltd & Anor* SC 21/18.The factors that are taken into account in that enquiry include: (a) the length of the delay; (b) the explanation for, or cause for, the delay; (c) the prospects of success for the party seeking condonation; (d) the need to bring finality to litigation; (e) the prejudice to the other party or parties. It is important to note that these must be considered conjunctively as a whole and not in isolation from one another. See *Fernicary Farm t/a Rutendo Farm* v *Des Moines Farm (Pvt) Ltd* SC 82/25 at p 5; *Bwititi* v *Stanley Farms (Pvt) Ltd & Ors* SC 112/21 at p 5.

[5] In terms of r 62(4) of the High Court Rules, 2021, an application for review must be filed within eight weeks of the termination of the suit, action, or proceedings in which the irregularity or illegality complained of is alleged to have occurred. Provided that on good cause shown the court may extend the time. In *casu*, the decision complained of was made on 21 October 2024. The eight weeks permitted by r 62(4) expired on 21 December 2024. It, therefore, became incumbent for the applicant file this application for condonation and extension of time to file an application for review. This application was filed on 16 April 2025. A simple calculation shows that this application was filed approximately four months outside the timeline allowed by the rules of court. The applicant contends that he became aware of the decision on 12 March 2025. According to the applicant's own version, this application was filed more than one month after he became aware of the decision. In any event, according to his own version, on 9 October 2020, the Ministry of Mines and Mining Development notified him that an application for a Special Grant had been made in respect of the area he had an interest in. The question whether the delay is inordinate or not is determined on a case-by-case basis. On the facts of this matter, there is no doubt that the delay was inordinate.

[6] It is also trite that a condonation application must give a full explanation for the delay, which must cover the entire period of delay and be reasonable. The applicant says he knew since 12 March 2025 that a Special Grant had been issued in favor of the fifth respondent. In

his own version, what he received on 24 March 2025 was confirmation of a fact already known to him. He alleges that it took him three weeks to gather resources to instruct a legal practitioner to file this application. A litigant seeking an indulgence of the court must be candid and detailed, the applicant does not explain what difficulties he encountered to cause him the delay of three weeks. In addition, the explanation advanced by the applicant for his inaction from 21 December 2024 to 16 April 2025 is far from satisfactory and lacks the ring of truth. I say so because the applicant had known since 9 October 2020 that an application for a Special Grant had been made. He knew that the Special Grant was being sought in respect of an area in which he had an interest. He did not file or seek to object or seek to interdict the issuance of the Special Grant. In fact, he must have known that one day it was going to be granted and was at peace with that eventuality. In addition, he does not say who verbally advised him on 12 March 2025 about the issuance of the Special Grant. To merely say employees is inadequate. It is merely an attempt to hide behind being vague and general. He does not explain the reason it took him three weeks to gather resources to instruct a legal practitioner. It is my considered view that the applicant did not provide the court with a full, detailed, and accurate account of the causes of the delay. The details must be furnished to enable the court to understand clearly the reasons for the delay. Since the applicant's non-compliance is time-related, then the date, duration, and extent of any obstacle on which reliance is placed must be spelled out. All these were not done by the applicant. Based on the explanation and submissions provided by both parties, it is evident that there are significant gaps in the applicant's version of events that remain unexplained. In the circumstances, the explanation offered is inadequate, insufficient and unreasonable.

[7] The only question which then remains is whether the applicant`s prospects of success on review are so strong, or even viable, that I can, at least to some extent, overlook or temper with his aforesaid inordinate delay and failure in respect of adequately explaining the delay. In respect of prospects of success, the applicant merely submitted that he has good prospects of success on the merits. The facts show that in 2010, the applicant obtained a Certificate of Registration over a block consisting of one gold reef named Smithfield Farm. He contends that he spoke to the Mining Commissioner Chiota about extending his claim, and Chiota visited the site and approved the extension. There is no evidence that he formally applied for

the extension; speaking to Chiota is not an official application. The area in dispute is not the land of Chiota. It is state land under the Ministry of Mines and Mining Development. A valid application can only be made to the Ministry and not a talk with an official of the Ministry, no matter his or her position or office in the Ministry. The applicant says he applied to the Minister to formalize the extension; there was no extension to formalize. In addition, there is no official document to show that the applicant was allocated the area in dispute by the Ministry of Mines and Mining Development. An extension granted in terms of the provisions of the Act must be in writing. The applicant could not be allocated state land by an individual without issuance of official documents, and contend that he made payments for it, and therefore it became his land. Therefore, whatever payments he made cannot be proof of ownership of the extension. To compound the application's challenges, there is neither a supporting affidavit from Chiota nor the Ministry confirming his version. It is merely his *ipso dicta*, unsupported by official documents.

[8] In addition, the applicant cannot seek refuge in the order of this court dated 2 December 2020. The purpose of the order was to prevent Melody Chinouriri from carrying out any unlawful mining activities at a mining claim Xmas 159, together with the extension, all measuring ten hectares. The interdict sought to stop unlawful mining activities. It cannot stop lawful mining activities. The fifth respondent has a Special Grant, and therefore, it has a lawful right to carry out mining activities in the disputed area. As stated above, the interdict cannot stop lawful mining activities. Therefore, it cannot be used to stop the fifth respondent from mining in the area covered by the Special Grant.

[9] The applicant argues that the application for a Special Grant was made for an area in Chiweshe, while the Special Grant was issued in respect of an area in Mazoe. First, there is no evidence for this assertion. It is in fact contested by the respondents, who contend that the location covered by the Special Grant is the one that was applied for by the fifth respondent. In fact, it was submitted that Chiweshe and Mazoe are in the same mining district. On the authority of the Plascon Rule formulated in *Plascon-Evans Paints Ltd vs Van Riebeeck Paints (Pty) Ltd* 1984 (3) SA 623 (A) it cannot be said that the respondents' version is far-fetched and unattainable. Secondly, if true, this is an issue between the Ministry of Mines and Mining Development and the fifth respondent. It is outside the applicant's lane. It is not an issue the

applicant can seek to hide or to seek refuge. I say so because it is not in respect of the mining claim allocated to him in terms of the law.

[10] In addition, a court does not review a decision standing alone. It reviews a record of proceedings. It is trite that a review is not concerned with the merits of the decision but whether it was arrived at in an acceptable fashion. The focus is on the process, and on the way in which the decision-maker came to the challenged decision. Instead of asking whether the decision was right or wrong, a court on review concerns itself with procedural irregularities. See *Zvomatsayi & Ors v Chitekwe No & Anor* 2019 (3) ZLR 990 (H). Just providing a Special Grant without the record of proceedings from the Ministry serves no useful purpose. The court does not review averments in the affidavits, it reviews proceedings. Therefore, without the record and the reasons for the issuance of the Special Grant, the application for review sought to be filed by the applicant cannot be said to have prospects of success.

[11] Condonation is not simply for the taking. A balance between the rights of the applicant and the fifth respondent must be established, so that in the absence of a realistic chance of succeeding in the application for review, the balance must be struck in favour of the respondents. The applicant has not proved that the application for review has prospects of success.

[12] The respondent's interest in finality of the matter must not be overlooked. In addition, the fifth respondent was issued a Special Grant on 21 October 2024 and has endured more than a year of uncertainty. The Grant will expire on 20 October 2026, without the fifth respondent having enjoyed its benefits. The prejudice against the fifth respondent is real and ongoing. It is for the above reasons that this application cannot succeed. It stands to be dismissed.

[13] The respondents have asked for punitive costs. It is trite that the scale of legal practitioner and client is an extraordinary one which should be reserved for cases where it can be found that a litigant conducted itself in a clear and indubitably vexatious and reprehensible manner. Such an award is very exceptional and is intended to be very punitive and indicative of extreme opprobrium. It should be in relation to conduct that is clearly and extremely

scandalous or objectionable that these exceptional costs are awarded. See *Rallings Enterprises (Pvt) Ltd v Luwo & Ors* 2020 (2) ZLR 51 (H).

[14] In *casu*, this application has no merit, but it has not crossed the red line to warrant costs on a legal practitioner and client scale. It must be noted though that the last thing that our already congested court rolls require is further congestion by an unwarranted proliferation of litigation. In light of these considerations, I am accordingly inclined to grant costs in favour of the respondents on a party-to-party scale.

In the result, it is ordered as follows:

The application be and is hereby dismissed with costs on a party and party scale.

Bherebende Law Chambers, applicant's legal practitioners
Rusinahama- Rabvukwa Attorneys, 3rd, 4th & 5th respondents' legal practitioners